

DISSENTING OPINION BY JONKHEER VAN EYSINGA.

[*Translation.*]

The present case was brought before the Court by an Application, dated May 4th, 1938, in which the Belgian Government asked for compensation to be awarded to the *Société commerciale de Belgique* by reason of the alleged refusal of the Greek Government to execute the arbitral award of July 25th, 1936, under which it was to pay to the said Belgian Company the sum of 6,771,868 gold dollars of the United States of America; this refusal constituting, according to the Belgian Application, a violation of the international obligations of Greece. In response, the Greek Government simply prayed the Court to dismiss the claim.

The fact that the Greek Government, in its Counter-Memorial, departing from the attitude adopted by it during the negotiations which took place after the delivery of the award of July 25th, 1936, and prior to the submission of the Application, acknowledged that the award possessed the force of *res judicata*, led the Belgian Government to amend its submissions, and this amendment, in its turn, led to the amendment of the Greek submissions.

As a result of this development in the course of the proceedings, the Court has before it two sets of final submissions each consisting of five claims asking the Court to "adjudge and declare" in the one case and to "declare" in the other. On both sides this development of the proceedings has been accepted, and consequently the Court must adjudicate on the two sets of submissions as if they had been presented by means of a special agreement.

However extensive the amendments to the submissions on either side, the case upon which the Court has to adjudicate remains the same. The Belgian Government wishes Greece to execute the award of July 25th, 1936—besides this award there was another of January 3rd, 1936—in so far as concerns the payment of 6,771,868 gold dollars; the Greek Government believes that it has sound reasons for not doing so; and each Party prays the Court to uphold the submissions which it presents in order to secure the fullest acceptance of its contentions.

Final submission A of the Belgian Government is as follows:

"May it please the Court:

A. To adjudge and declare that all the provisions of the arbitral awards given in favour of the *Société commerciale de*

A./B. 78 ("SOCIÉTÉ COMMERCIALE").—OP. VAN EYSINGA 181

Belgique on January 3rd and July 25th, 1936, are without reserve definitive and obligatory for the Greek Government".

Final submission No. 3 of the Greek Government is as follows:

"May it please the Court to declare:

(3) That the Greek Government acknowledges that the arbitral awards of January 3rd and July 25th, 1936, given between itself and the *Société commerciale de Belgique*, have the force of *res judicata*".

It follows from these two submissions that the Belgian Government and the Greek Government agree in acknowledging that the awards of 1936 have the force of *res judicata*. But it is not enough to accept the two submissions and "declare" that the awards of 1936 are definitive and obligatory.

For on the one hand the Belgian submission A, the terms of which are categorical, is followed by submissions B 1, B 2 and B 3, which pray the Court to adjudge and declare that certain consequences of the awards of 1936, which the Greek Government had sought to evade, are essential. I agree with the view of the judgment that these submissions are correct, but I consider that Belgium is entitled to have this recorded in the operative part of the judgment.

On the other hand, the Greek submission No. 3 which is less categorical is followed by submissions Nos. 4, 5 and 6, which are linked to submission No. 3 by a significant "however". Certainly the Greek Government acknowledges that the awards of 1936 have the force of *res judicata*, but it also asks the Court to say that it is materially impossible for it to execute the awards as formulated (submission No. 4), that negotiations should be begun for an arrangement corresponding with the budgetary and monetary capacity of Greece (submission No. 5) and that, in principle, the fair and equitable basis for such an arrangement is to be found in the agreements concluded or to be concluded by the Greek Government with the bondholders of its external public debt (submission No. 6). Greece is also entitled to have the Court adjudicate on these submissions.

Whereas the final Belgian submissions adopt an exclusively legal standpoint, the Greek submissions Nos. 4 and 6 take another standpoint. What the Greek submission No. 4 asks the Court to do is to adjudicate upon the financial and monetary capacity of Greece, even though the intention of the Parties at an earlier stage of the proceedings may have been to leave this question aside. On the basis of the finding asked for by the Greek submission No. 4—a finding to the effect that it is materially impossible for the Greek Government to execute the awards of 1936 as formulated—the Court, according to

submission No. 5, should leave it to the Greek Government and the Belgian Company to come to an arrangement which would correspond with the budgetary and monetary capacity of Greece and which, according to the Greek submission No. 6, should, in principle, be based on the agreements already concluded or to be concluded with the bondholders of the Greek external debt.

The Court no doubt has jurisdiction to entertain submission No. 4. It is a question of ascertaining a fact: the budgetary and monetary situation of Greece. The ascertainment of this fact in its turn requires an expert report, for the Court cannot adjudicate simply on the basis of what the two Parties—notwithstanding their statements that this question should remain outside the scope of these proceedings—have put before it regarding the financial and monetary capacity of Greece. Accordingly the Court should apply Article 50 of the Statute which provides that it "may, at any time, entrust any individual, body, bureau, commission or other organization that it may select, with the task of carrying out an enquiry or giving an expert report".

Only after such an expert report could the Court adjudicate on Greek submissions Nos. 4 to 7 and upon Belgian submission C.

(Signed) v. EYSINGA.